

1.

| CASE #      | CASE NAME                                        | HEARING NAME                                                                          |
|-------------|--------------------------------------------------|---------------------------------------------------------------------------------------|
| CVRI2203893 | BARRALES vs<br>AMERICAN HONDA<br>MOTOR CO., INC. | MOTION TO COMPEL FURTHER<br>RESPONSES TO FORM<br>INTERROGATORY NO. 17.1, SET<br>THREE |

**Tentative Ruling:**

GRANT

A further, verified response to Form Interrogatory No. 17.1, Set Three, is Ordered within 20 days.

2.

| CASE #      | CASE NAME                                        | HEARING NAME                                                      |
|-------------|--------------------------------------------------|-------------------------------------------------------------------|
| CVRI2203893 | BARRALES vs<br>AMERICAN HONDA<br>MOTOR CO., INC. | MOTION TO COMPEL<br>ANSWER/RESPONSE TO<br>SPECIAL INTERROGATORIES |

**Tentative Ruling:**

GRANT

Further verified responses to Special Interrogatories, Set Three, Nos. 104-146, are Ordered within 20 days.

The burden is not on the propounding party to show relevance, but rather on the responding party to show that its objections are justified. (*Williams v. Sup. Ct.* (2017) 3 Cal.5<sup>th</sup> 531.) The documents sought here are relevant to show “willfulness” under the Song-Beverly Act. The fact that the *Cadena* documents reference other model Hondas does not make the Interrogatories irrelevant as the different models share many identical components. Defendant fails to justify its objection of undue burden and expense as well.

No Sanctions

3.

| CASE #      | CASE NAME                       | HEARING NAME                                                            |
|-------------|---------------------------------|-------------------------------------------------------------------------|
| CVRI2501539 | MILLER (LEWIS) vs<br>BLANCHETTE | MOTION TO QUASH SUBPEONA<br>ISSUED TO RIVERSIDE COUNTY<br>SHERIFF DEPT. |

**Tentative Ruling:**

DENY

The motion to quash is moot. Defense counsel has withdrawn the subpoena (on 9-3-26) after the subpoena service vendor mistakenly added paperwork from an unrelated matter to the subpoena. No justiciable controversy remains. This court cannot grant relief concerning a subpoena that is no longer outstanding. (*Wilson & Wilson v. City Council* (2011) 191 Cal.App.4<sup>th</sup> 1559, 1574.)

4.

| CASE #      | CASE NAME                                       | HEARING NAME                                                            |
|-------------|-------------------------------------------------|-------------------------------------------------------------------------|
| CVRI2504963 | RODRIGUEZ vs<br>FERGUSON CAPITAL<br>GROUP, INC. | MOTION TO BE RELIEVED AS<br>COUNSEL FOR FERGUSON<br>CAPITAL GROUP, INC. |

**Tentative Ruling:**

GRANT

5.

| CASE #      | CASE NAME                  | HEARING NAME                                                                                                                                   |
|-------------|----------------------------|------------------------------------------------------------------------------------------------------------------------------------------------|
| CVRI2507429 | IZQUIERDO vs FCA US<br>LLC | MOTION TO COMPEL INITIAL<br>DISCLOSURES PURSUANT TO<br>CALIFORNIA CODE OF CIVIL<br>PROCEDURE § 871.26 AND<br>REQUEST FOR MONETARY<br>SANCTIONS |

**Tentative Ruling:**

GRANT the motion. Defendant to produce the documents required under CCP § 871.26(h)(6) through (10), (12), and (13) within 20 days.

Section § 871.26 does not condition mandatory disclosure on the entry of a protective order. Therefore, Defendant is to produce those documents that fall within the ambit of § 871.26(h). These include; warranty transaction history records, auto pay claims, the Complaint, Cause, and Correction Data, Trouble Not Found claims, module reset warranty transactions, warranty policies and procedure manuals, service manual materials, PDI records, recalls, TSBs, and ISBs. Section § 871.26(h) does not require the manufacturer to produce every record returned by a VIN search, does not require an export from every system, or a disclosure of the search methodology. The fact that a record is indexed by VIN does not automatically make it a mandatory initial disclosure. Defendant fails to present facts to show that any privilege applies, including any trade secret privilege. Defendant does not provide a privilege log.

No Sanctions.